

****19.05.2021****

****Another sanction for violation of GDPR****

The National Supervisory Authority has completed an investigation in April at Banca Comercială Română S.A. and found a violation of the provisions of Article 5 paragraph (1) letters a) and d), Article 5 paragraph (2), and Article 6 of the GDPR from the General Data Protection Regulation.

Banca Comercială Română S.A., as the operator, was sanctioned with a fine of 9,855.8 lei (equivalent to 2,000 euros).

The investigation was initiated following the receipt of a complaint alleging that Banca Comercială Română S.A. used, without consent, the personal data of an individual in enforcement proceedings for debts arising from a credit contract of which the individual was unaware.

The complainant thus reported the use of his personal data without consent for purposes other than those authorized by him, as well as the use of an outdated address, for which the complainant believed that the bank illegally accessed a database. Additionally, he complained about the lack of information regarding the source of the collection of this information according to Article 14 of the GDPR, as well as the lack of a response regarding several requests made by him to BCR S.A.

During the investigation, the National Supervisory Authority found that Banca Comercială Română S.A. processed the personal data of the complainant without legal basis, by incorrectly assigning the status of guarantor in 2019, extracting outdated data, using and disclosing his personal data in notification procedures carried out through a judicial executor, concerning the arrears of a credit contract accumulated by a commercial company, a client of the bank, with which the complainant had no relationship, in violation of Article 5 paragraph (1) letters a) and d) and Article 5 paragraph (2), as well as Article 6 of the GDPR.

The National Supervisory Authority applied to the operator Banca Comercială Română S.A. the corrective measure to ensure compliance with the GDPR regarding the operations of collecting and further processing personal data, by implementing effective methods to ensure the accuracy and up-to-date nature of the data, from the moment of data collection and their entry into the operator's database and throughout the processing period; in this regard, appropriate and effective security measures will be considered, both technically regarding the deletion of inaccurate/outdated data, and organizationally, through regular training of the individuals processing data under the authority of the operator.

In this respect, Recital (39) of the GDPR states that "Any processing of personal data should be lawful and fair. (...) All reasonable measures should be taken to ensure that personal data which are inaccurate are rectified or deleted. (...)"

Regarding the legality of processing, Recital (40) of the GDPR provides that "For the processing of personal data to be lawful, it should be carried out on the basis of the consent of the data subject or on another legitimate basis provided by law, either in this regulation or in another act of Union law or national law, as provided in this regulation, including the necessity of complying with legal obligations to which the operator is subject or the necessity of performing a contract to which the data subject is a party or to take steps prior to entering into a contract, at the request of the data subject."

****Legal and Communication Department****

****A.N.S.P.D.C.P.****